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[TENTATIVE] ORDER OVERRULING IN
PART AND SUSTAINING DEFENDANTS' DEMURRER

I. INTRODUCTION

On April

13, 2026, Plaintiff Rene Lanoue ("Plaintiff") filed this wage-and-hour action against Defendants Comfort Hospice, Inc., Maricor Francia, and Richard Francia (collectively, "Defendants"). Plaintiff's Complaint alleges causes of action for (1) minimum wage violations; (2) overtime wage violations; (3) meal period violations; (4) rest period violations; (5) wage statement penalties; (6) waiting time penalties; (7) failure to reimburse necessary business expenses; and (8) unfair competition.

On June 18, 2026, Defendants filed the instant demurrer to the Complaint. Plaintiff filed a late opposition on August 3, 2026. No reply has been filed.

Meet and confer

Pursuant to Code of Civil Procedure

section 430.41, subdivision (a), the demurring party is required to meet and confer with the party who filed the pleading at least five days before the responsive pleading is due. This must occur in person, telephone or by video conference with the aim of resolving any objections raised in the demurrer. Additionally, the demurring party must file and serve a declaration detailing the meet and confer efforts. It should be noted, however, that the failure to meet and confer is not itself grounds for sustaining or overruling a demurrer

or granting or denying a motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

Here, Defendants' counsel declares that he spoke with Plaintiff's counsel, Guneez Ibrahim, regarding the alleged deficiencies in the Complaint, but the parties were unable to reach an agreement. (Bonar Decl., ¶ 3.) Thus, requirement satisfied.

II. LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

CCP section 430.10(f) provides that a pleading is uncertain if it is ambiguous and unintelligible. (See Code Civ. Proc., § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) "A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant cannot reasonably respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her." (Weil & Brown, Civil Procedure Before Trial (The Rutter Group) § 7:85 (emphasis in original).) "The objection of uncertainty does not go to the failure to allege sufficient facts." (Brea v. McGlashan (1934) 3 Cal.App.2d 454, 459.) "It goes to the doubt as to what the pleader means by the facts alleged." (Id.) "Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet." (People v. Lim (1941) 18 Cal.2d 872, 882.)

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

III. ANALYSIS

Defendants

demur to the Complaint pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), arguing that the Complaint fails to state facts sufficient to constitute a cause of action and is uncertain, ambiguous, and unintelligible.

As a preliminary matter, Defendants

point out that although the caption identifies wage statement penalties as the fifth cause of action. However, no such cause of action is pleaded in the body of the Complaint. Plaintiff concedes this point and does not oppose removal of the claim from the caption. Thus, demurrer is SUSTAINED on this ground.

Failure to state cause of action as to Defendant Comfort

Hospice, Inc. :

First and Second Causes of Action: minimum wage and overtime violations (LABOR CODE §§ 1182.12, 1194, 1194.2, 1197, 204, 510, 1194, 1198.)

Defendants argue the first and

second causes of action fail because Plaintiff does not identify specific dates or instances in which she was not paid minimum or overtime wages. Defendants contend the allegations are therefore too vague and conclusory to state a claim. (Demurrer, pp. 6-7.)

The Complaint alleges that

Defendants required her to travel between multiple customer locations and the office during the workday without compensating her for that travel time and required her to perform off-the-clock work, including preparing medical charting for each visit. (Complaint., ¶ 14.). Plaintiff alleges that Defendants failed to pay her for all hours worked and failed to compensate her for overtime hours actually worked. (Complaint., ¶¶ 18, 23.)

The Court finds these allegations sufficient to state a claim and sufficiently certain to apprise Defendants of the nature of the claim asserted against them. Defendants cite no authority requiring Plaintiff to identify the specific dates or instances of unpaid work at the pleading stage.

Thus, the demurrer to the first and second causes of action is OVERRULED.

Third and Fourth Causes of Action: Meal and Rest Period Violations

Defendants argue the third and fourth causes of action fail because Plaintiff does not identify specific dates or instances on which she was denied a compliant meal or rest period. Defendants contend the allegations are therefore too vague and conclusory to state a claim. (Demurrer, pp. 8-9.)

The Complaint alleges that

Defendants' meal period policies and practices frequently resulted in late, short, or missed meal periods and that Plaintiff was unable to take compliant meal periods. Plaintiff further alleges that Defendants' rest period policies and practices failed to authorize and permit a net 10-minute rest period for every four hours worked, or major fraction thereof. Plaintiff alleges that Defendants failed to pay the required premium wages when compliant meal or rest periods were not provided. (Complaint., ¶¶ 13-14.)

The Court finds these allegations sufficient to state claims for meal and rest period violations and sufficiently certain to apprise Defendants of the nature of the claims asserted against them. Defendants cite no authority requiring Plaintiff to identify the specific

dates or shifts on which the alleged meal and rest period violations occurred at the pleading stage.

Thus, the demurrer as to the third and fourth causes of action is OVERRULED.

Fifth, Sixth and Seventh Causes of Action: Waiting Time Penalties, Failure to Reimburse Necessary Business Expenses, and Unfair Competition

Defendants argue the fifth, sixth, and seventh causes of action fail because Plaintiff relies on vague and conclusory allegations without identifying specific dates or instances of the alleged violations. (Demurrer, pp. 10-13.)

As to waiting time penalties, Plaintiff alleges that Defendants failed to timely pay all wages due upon her separation from employment, including unpaid minimum and overtime wages and meal and rest period premium wages, and that the failure to pay those wages was willful. (Complaint., ¶¶ 33-34.) As discussed above, Plaintiff has sufficiently alleged the underlying wage violations.

As to unreimbursed business expenses, Plaintiff alleges that Defendants required her to incur expenses for mileage, use of her personal cellphone, and medical equipment in performing her duties and failed to reimburse those expenses. (Complaint., ¶ 16.)

Finally, Plaintiff's unfair competition claim is predicated on the alleged Labor Code violations, including the failure to pay minimum and overtime wages and to reimburse necessary business expenses, which the court finds were sufficiently plead. (Complaint., ¶¶ 40–43.)

The Court finds these allegations sufficient to state the respective claims and sufficiently certain to apprise Defendants of their nature. Defendants again cite no authority requiring Plaintiff to identify specific dates or instances of each alleged violation at the pleading stage. Thus, the demurrer to the fifth, sixth, and seventh causes of action is OVERRULED.

Individual Defendants: Maricor Francia and Richard Francia

Defendants

argue that Plaintiff fails to allege sufficient facts to impose personal liability against Maricor Francia and Richard Francia under Labor Code section 558.1. Defendants contend that the Complaint merely identifies Maricor Francia as the Chief Executive Officer and Richard Francia as the Secretary and Chief Financial Officer and alleges, in conclusory fashion, that each violated or caused violations of the Labor Code. (Demurrer, p. 13.)

Labor Code section 558.1 imposes liability where an owner, director, officer, or managing agent personally participates in the alleged violations or sufficiently participates in the employer's activities so as to have caused the violations. (*Usher v. White* (2021) 64 Cal.App.5th 883, 896–897.) An officer's approval of an unlawful wage policy may be sufficient. (*Espinoza v. Hepta Run, Inc.* (2022) 74 Cal.App.5th 44, 59.)

Here, the Complaint identifies

Maricor Francia as CEO and Richard Francia as Secretary and CFO but does not allege facts showing how either personally participated in or caused the alleged Labor Code violations. The Court finds that the allegations that they “violated, or caused to be violated” the identified Labor Code provisions insufficient.

Thus, the demurrer to the claims

against Maricor Francia and Richard Francia is SUSTAINED with 20 days' leave to amend.

Uncertainty

Defendants also demur on the ground of uncertainty pursuant to Code of Civil Procedure section 430.10, subdivision (f). A demurrer for uncertainty is disfavored and will be sustained only where the pleading is so uncertain that the defendant cannot reasonably respond, i.e., the defendant cannot reasonably determine what issues must be admitted or denied or what claims are directed against it. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Ambiguities that can reasonably be clarified through discovery generally do not support a demurrer

for uncertainty. (Ibid.)

The Court does not find the Complaint sufficiently uncertain to warrant sustaining the demurrer on this ground. Although the Complaint contains a numbering error and identifies a cause of action for wage statement penalties in the caption that is not pleaded in the body of the Complaint, the claims actually alleged are sufficiently intelligible to permit Defendants to reasonably respond. Indeed, Defendants were able to identify and address each of the pleaded causes of action in their demurrer. Any remaining ambiguity concerning the specific dates or instances of the alleged violations may be clarified through discovery.

Thus, the demurrer on this ground is OVERRULED.

IV. ORDER

The Court OVERRULES the demurrer to the Complaint as to Defendant Comfort Hospice, Inc.

The Court SUSTAINS with 20 days' leave to amend the demurrer as to Defendants Maricor Francia and Richard Francia.

The Court further OVERRULES the demurrer on the grounds of uncertainty.

Defendants are to give notice.

Dated: August 14, 2026

JARED

D. MOSES

JUDGE OF THE SUPERIOR COURT